

SENATE JOINT RESOLUTION 3

By Pody

A RESOLUTION relative to the definition of antisemitism.

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that the General Assembly finds that "antisemitism" means a certain perception of Jews, which may be expressed as hatred toward Jews, or rhetorical and physical manifestations of antisemitism that are directed toward Jewish or non-Jewish individuals and their property, or toward Jewish community institutions and religious facilities, and includes, but is not limited to:

(1) Calling for, aiding, or justifying the killing or harming of Jews in the name of a radical ideology or an extremist view of religion;

(2) Making mendacious, dehumanizing, demonizing, or stereotypical allegations about Jews or the power of Jews collectively, including especially, but not exclusively, the myth about a world Jewish conspiracy or of Jews controlling the media, economy, government, or other societal institutions;

(3) Accusing Jews as a people of being responsible for real or imagined wrongdoing committed by a single Jewish person or group, or even for acts committed by non-Jews;

(4) Denying the fact, scope, mechanisms (e.g., gas chambers), or intentionality of the genocide of the Jewish people at the hands of National Socialist Germany and its supporters and accomplices during World War II (the Holocaust);

(5) Accusing the Jews as a people, or Israel as a state, of inventing or exaggerating the Holocaust;

(6) Accusing Jewish citizens of being more loyal to Israel, or to the alleged priorities of Jews worldwide, than to the interests of their own nations;

(7) Denying the Jewish people their right to self-determination, including claiming that the existence of a state of Israel is a racist endeavor;

(8) Applying double standards by requiring a behavior not expected nor demanded of any other democratic nation;

(9) Using the symbols and images associated with classic antisemitism, including claims of Jews killing Jesus or blood libel, to characterize Israel or Israelis;

(10) Drawing comparisons of contemporary Israeli policy to that of the Nazis; or

(11) Holding Jews collectively responsible for actions of the state of Israel.

BE IT FURTHER RESOLVED, that the General Assembly urges all state departments and agencies to consider antisemitism as evidence of discriminatory intent for any law or policy in this State that prohibits discrimination based on race, color, religion, or national origin.

BE IT FURTHER RESOLVED, that the General Assembly urges district attorneys general to seek an enhanced sentence for any criminal defendant who intentionally selected the person against whom the crime was committed or selected the property that was damaged or otherwise affected by the crime, in whole or in part, because of the defendant's antisemitism.

BE IT FURTHER RESOLVED, that the General Assembly urges any state governmental entity, local education agency, and institution of higher education that receives a complaint from a person who alleges that antisemitism has occurred on the premises of a public school serving any of the grades kindergarten through twelve or an institution of higher education, or through electronic outreach from a public school serving any of the grades kindergarten through twelve or an institution of higher education, to take into consideration the definition of antisemitism in determining whether the alleged act was motivated by antisemitic intent.